

ARSI UNIVERSITY LAW SCHOOL
Course: Evidence Law.



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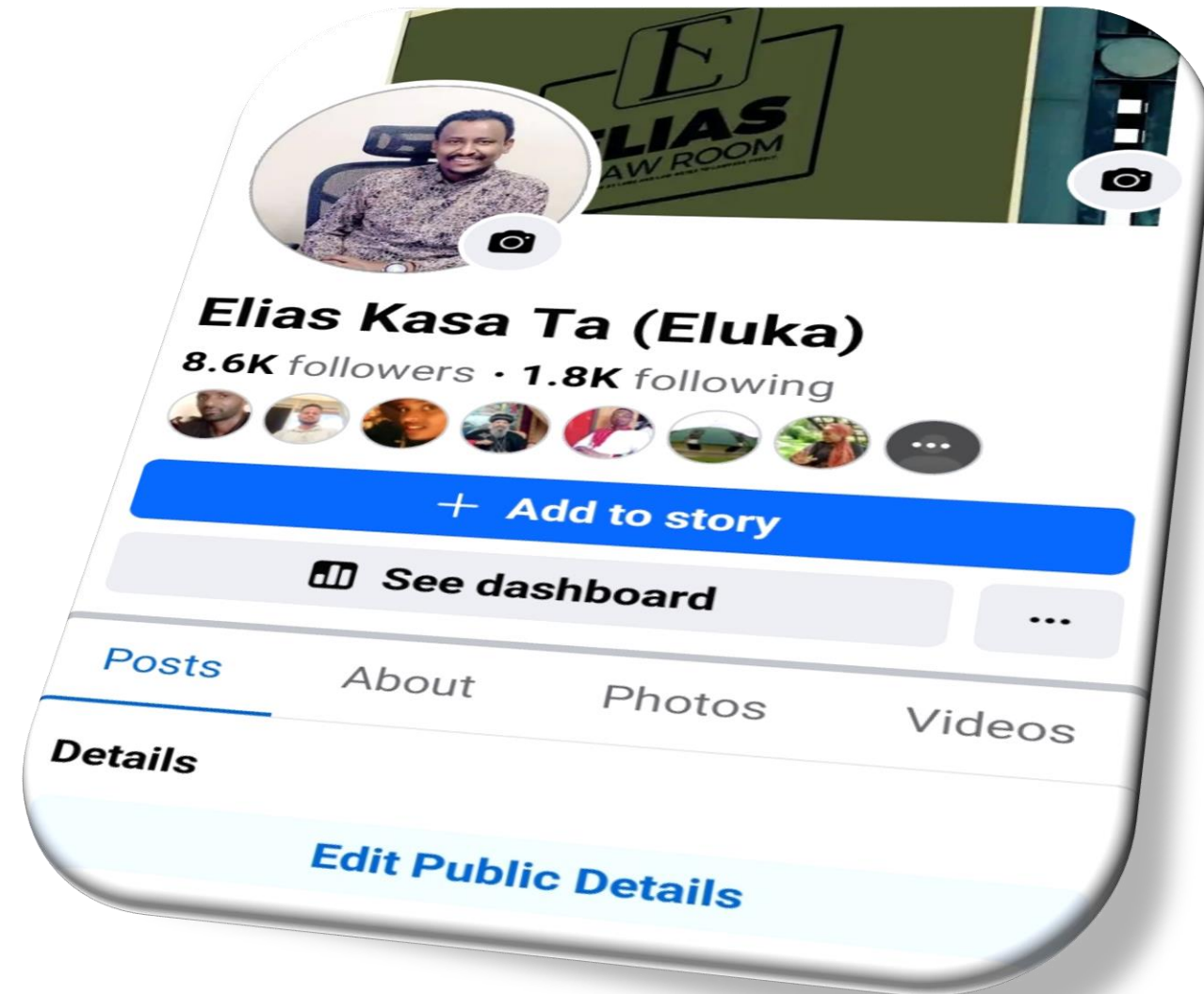
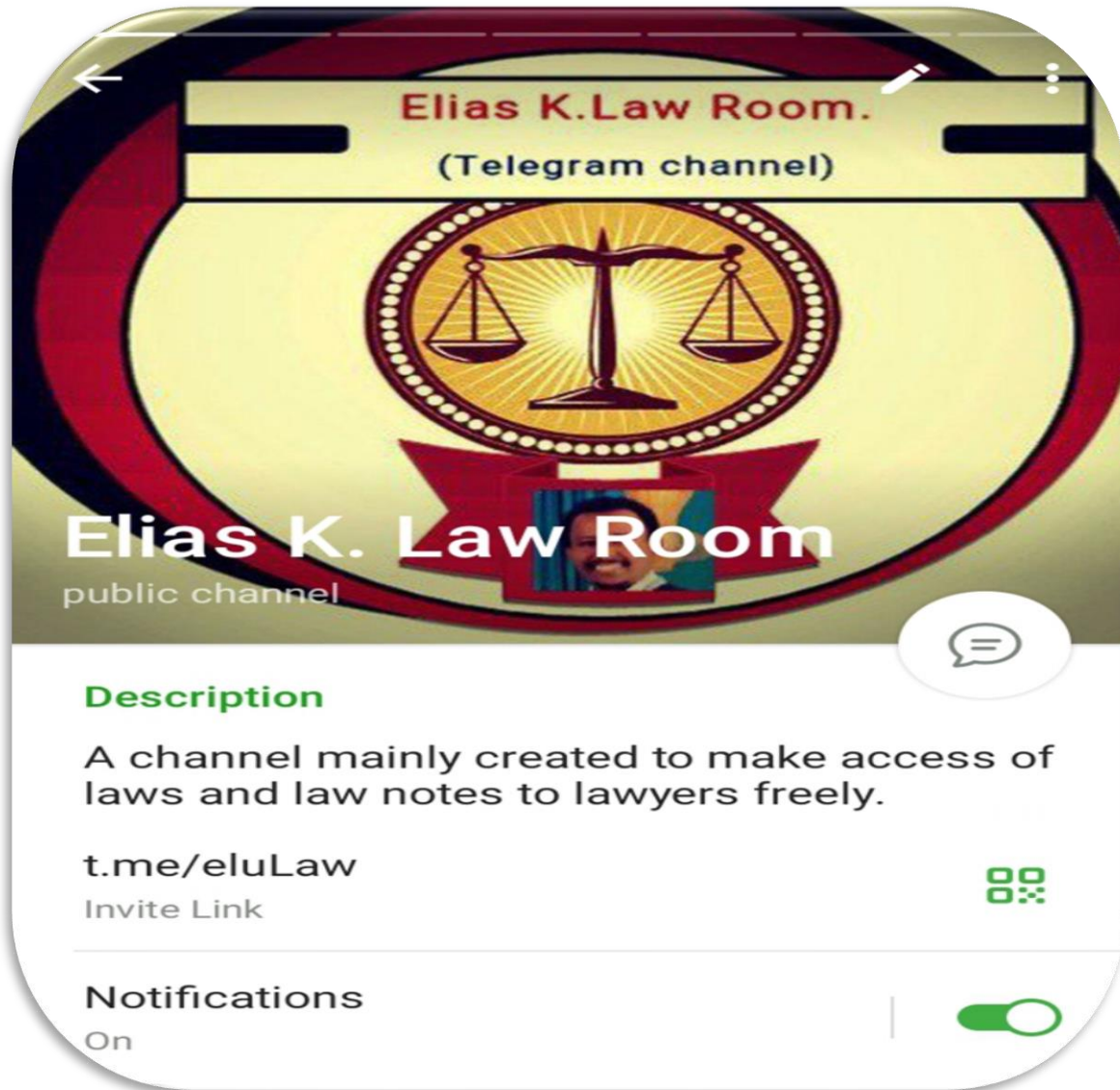


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**What do you
expect
from this
course?**



Can you
prove it



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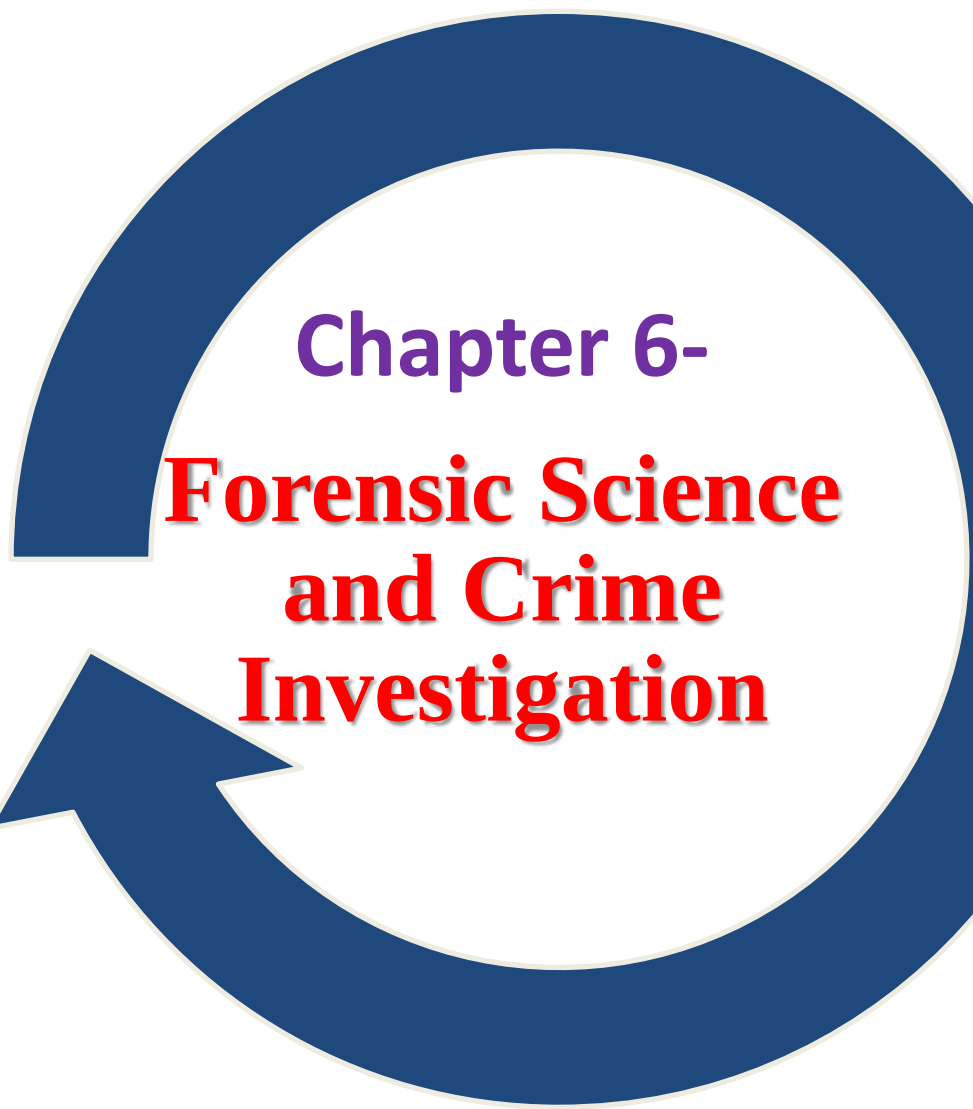
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Chapter 1-

Evidence Law General Introduction

1. Meaning of Evidence

Evidence is derived from the Latin word `evidentia' meaning:-

- ❖ to show clearly
- ❖ to make clear to the sight to discover clearly
- ❖ to ascertain or to prove

Evidence has been defined in different ways. Examples are;

- ❖ Evidence is something, which serves:-to **prove or disprove** the existence or non-existence of an **alleged fact**.
- ❖ Evidence is; the means of **satisfying the court** of the **truth or untruth of disputed facts**.
- ❖ it is also the **foundation of proof**.

Definition of scholars

- ❖ **Taylor defines evidence as:** All legal means, exclusive of mere argument, which tend to **prove or disprove** any matter of fact; the truth of which is submitted to judicial investigation”
- ❖ **Philpson states that :** Evidence means the **testimony, whether oral, documentary or real(physical evidence such as knife, gun..),** which may be legally received in order to prove or disprove some facts is dispute.(**What about presumption?**)

❖ **According to Cross:** Evidence is the testimony, hearsay, documents, things, and facts, which a court will accept as evidence of the facts in issue in a given case.

❖ **Aguda states:** Evidence is the means by which facts are proved but excluding **inferences and arguments**

Black's law (evidence)....

- **Evidence is something (including testimony, documents, and tangible objects) that tends to prove or disprove the existence of an alleged fact.**
- **“.....the term ‘evidence’ includes all the means by which any alleged matter of fact, the truth of which is submitted to investigation, is established or disproved.**
- **‘Evidence’ has also been defined to mean any species of proof legally presented at the trial of an issue, by the act of the parties and through the medium of witnesses, records, documents, concrete objects, and the like.**

The 1967 Draft Evidence Rules (DER) defines evidence,

“A means where by any alleged matter of fact, the truth of which is submitted to investigation, is proved or disproved and includes statements by accused person, witnesses, admissions, judicial notice, presumption of law and ocular observations by the court in its judicial capacity ” Taken from India- not full definition (doesn't include **documentary evidence**)

❖ **Criminal procedure and evidence law (final draft)- “ማስረጃ”**

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What is law of evidence?

- When we come to the definition of law of evidence, there is no one size fit all definition. **Generally the law of Evidence relates to:**
 - ❖ What facts need to be proved and produced and what facts need not be proved to the court
 - ❖ Who may prove / Which of the parties have the burden of proof
 - ❖ How to prove such facts
 - ❖ The required standards of proof to win the case
 - ❖ Relevancy, Admissibility, Credibility and weight of evidence....

Take for example an **aggravated Homicide case**

Evidences:

- ❖ **Witness**

- ❖ **Confession**

- ❖ **Exhibits** (dagger, a cloth stained with blood..)

- ❖ **Expert testimony** which warrants the cause of the death of the deceased

- ❖ All this **are evidences** that are very relevant to proof whether a crime of aggravated homicide is committed or not

2. Nature of Evidence law

- **Where is the place of Evidence of Law?**
 - ❖ Laws may broadly be classified in to Substantive and Adjective
 - ❖ The **first defines right and duties** while the later deals with the manner of enforcing the rights and duties defined
 - ❖ **Adjective laws** :- Law of Evidence and Procedural Laws (both criminal and civil procedure)-means to end laws. **To enforce substantive rights and duties.**

There are arguments:

- **The first argument** : THE LAW of Evidence should be incorporated under procedural laws because Similarity in purpose which means both are the **means to an end**
- **The second argument** : The mere fact that law of evidence is a means to the enforcement of substantive law does not make it fall under the category of procedural laws
- There are certain issues procedural laws never address and are left to evidence law
Eg.the **standard of proof**, facts to be proved or need not be proved and the value to be given to each term of evidence, **relevancy, admissibility** etc

Discussion

- **WHICH LINE OF ARGUMENT IS MORE
TENABLE? WHY/WHY NOT?**

Remark

- ❖ Evidence law **is not strictly speaking procedural law**,
- ❖ however it shares the commonality with procedural laws in the sense that both are means to the enforcement of the substantive law
- ❖ Thus, evidence law suitably falls within **the general category of Adjective laws**, which deal with the **enforcement of the substantive law.**

- ❖ However, all nations does not have their own code of evidence, which can be considered as **one sect of Adjective law**.
- ❖ **For instance**, our country Ethiopia does not have evidence code.
- ❖ The truth is that our rules of evidence **are not put together in a code** or **proclamation**, but are found **widely scattered in both substantive and procedural law**.

❖ **Q. Dear students,** is law of evidence more of practical course? 5 minute

❖ One can understand **more about the rules of evidence** that he knows **theoretically when he becomes a practitioner**. Do you agree with this statement?

3. Purpose /significance of Evidence/Evidence law.

List some of the significances of evidence and evidence law?

Significance of evidence

- ❖ It is used as a tool **to determine whether a disputed issue is true or false,** or whether it is an instrument to the court to confirm or refute the existence or non-existence of the outcome.
- ❖ **To save costs**
- ❖ Ensure that a decision is made **as soon as possible**
- ❖ Generally it makes for a **strong justice system.**

Significance of evidence law

- ❖ Evidence Is the “Key” which a court needs to render a decision.
- ❖ Provides the court with information
- ❖ **Regulates the process of proof**
- ❖ Helps to achieve **accelerated, fair and economic justice**
- ❖ It may protect **public interest by preventing the truth** from being discovered.
- ❖ protect the accused's right to a fair trial. Eg, ***prohibiting evidence of defendant's character and previous conviction*** (see Art 138 of cr.p.c and Rule-145 of DER)

Evidence in civil and common law legal systems

- **There are two major legal systems (legal traditions) in the world.**

- (1) **The Anglo - American (the common law legal system).**

- (2) **The continental (the civil law legal system).**

Q. Is there a difference between the two legal systems regarding evidence rules?

A. Organization of the rule of evidence:

- ❖ The **common law legal system**, have **separate rules of evidence**
- ❖ The rules determine what evidence is **admissible** and what evidence **is not admissible**.
- ❖ The **continental system** have **no separate code of evidence** law.

B. Difference regarding the sources of evidence rules :

- ❖ **Common law legal** system have Separate code of evidence law enacted by **the law-making organ**.
- ❖ they have also judge made evidence rules due to the existence of the precedent system.
- ❖ But **in civil law** evidence law are sparsely distributed **in both substantive and procedural laws. But enacted by parliament only(Ethiopia procl. 1234/2013-cassation decision-**

C. The difference regarding the system of inquiry

- ❖ **The common law countries** employ the "Adversarial system" of evidence gathering. An **adversarial trial** provides a forum in which **two parties present competing version of the truth**. It is a party-lead system **judges listen the evidence Presented and decide.**(passive role of judges)
- ❖ Control in the adversarial process **rests with the parties**. For this reason, the role of the advocate in the presentation of evidence can not be underestimated.
- ❖ The parties' **legal representatives** collect the evidence and decide what evidence **should be presented and how it should be presented**

- ❖ **The civil law system** employ the "inquisitorial system" of inquiry
- ❖ The **court has the task of making inquiry**. It **question witnesses, directs the police investigation, commission the service of expert witness** and **examines all relevant evidences**.
- ❖ The **role of the advocate** is **considerably less**. Ensure his client a fair trial by checking that correct law is applied and that procedural rights are respected.
- ❖ The **judge obtains** most of the evidence **through the process of questioning witnesses.(Active role of judges)**

D. The differences on the types of evidences they emphasized

- ❖ In common law legal system, the **greatest weight** is attached to **oral testimony** of the **parties and witnesses**.
- ❖ The **physical presence** of the witness affords the judge the opportunity of observing the witness **demeanor.(Character)**
- ❖ **Documentary evidence** is generally regarded as being **inferior to oral evidence**.

E. witnesses of parties in their own case

- ❖ In common law legal systems, **parties themselves** are **competent witnesses in their own case**. Here, the defendant who chooses to plead not guilty puts the prosecution to proof of its case.
- ❖ The defendant is a competent witness in his own defense and may therefore choose whether or not to give evidence **on oath**.
- ❖ They give **great place for oath**. Specially in **England keeping one's word have a great place**.

❖ **Juries** considers that **hearing witness results presenting the person in court** which is useful for testimony because it brings about **physical observation of the person**, **observation of his emotions**, and **notice of something on his face**.

❖ **However, in civil law system**, in accordance with the general view it is considered best if **no one is a witness in his own case**.

❖ **In civil law system** it is not right to have a person present as a **witness in his case**. Every person is certainly **useful to himself**. **Even his family and people living with him**, including the maid, cannot be witnesses. since these people are **supposed to be helping him**.

F. Admissibility of hearsay evidence?

- ❖ The **oral evidence must be direct** in **common law legal systems**.
- ❖ in common law legal system since they give higher recognition for oral evidence hearsay evidence is acceptable evidence.
- ❖ **In hearsay evidence**, there is **no test of accuracy** which enables the opponent party in checking whether or not the **witness is speaking the truth**, like **cross-examination** and **physical presence of the real witness**. **Absence of oath**, absence of testing his behavior etc
- ❖ Since, it is the right of the accused **to confront** his or her accusers.

❖ **In civil law system** hearsay evidence it may be exceptionally admissible. they didn't give high place for this type of evidence.

❑ **Q. How about in Ethiopia? See art. 137(1), cr pc, 261(1) civ. Pro.co**

❖ And Cassation **number 113464 vol 19** decided to be admissible. But it is better to see with **Art 20(4) of constitution**-right to cross examine(**criminal matters**)

Evidence in Ethiopia



Do you think Ethiopia has a separate code of evidence?

- ❖ Ethiopia do not have a **separate and codified law of evidence**.
- ❖ Rather our evidentiary rules are found in **scattered throughout** our **substantive laws** such as the criminal law, private laws you find in the **civil code, commercial code, family law** etc.
- ❖ we have a number of evidence rules scattered throughout our substantive laws like the Articles on **proof of marriage, proof of will**, proof of contract, **proof of ownership**...
- ❖ **Procedural law** mainly the criminal procedure and the civil procedure.

- ❖ Ethiopians draft evidence rules basically copies the Indian evidence act with certain interesting twists of its own, particularly by way of omission.
- ❖ In Ethiopia, for more than **forty years** this draft evidence rules have been in use for academic purposes.
- ❖ But nowadays **Draft Criminal law Procedure and Evidence Code is under enactment.**

Sources of Ethiopia's Evidence Rules

1. The evidentially rules which are found **scattered through** out our **substantive, Procedural** and **other proclamations**.
 - ❖ **C.C Art .2001-burden of proof for performance, 2003, 2005(1)-(form-written-need to produce such document), Civ.pro. Art.136 (expert witness- e.g Land office), 138-rejecting evidence, 261-witness on own cases, Cri.pro Art 137(facts which are relevant...), 142(bringing defence) 143(additional witness (name appear or not appear), 145(evidence from other place)**
 - ❖ **Corruption procl. No; 881/2015, 434/2005 fi 882/2015 (revised rules of evidence), Prevention and Suppression of Terrorism Crimes Proclamation No.1176/2020**

2. **Modern and internationally accepted principles** of **evidences** have been in use in our courts just to **fill the existing gaps** found in out substantive and procedural laws. Such as “**fact in issue need to be proved by evidence**” “**presumptions**” “**circumstantial evidence**”

3. **Case laws** are also considered as the **third source of evidence rules** in Ethiopia.(**Cassation decisions-Procl. No 1234/2013 Art 10(2)-** binding **from day of judgment** not only publication)

Now days **published vol 1-25** and bundle of **unpublished decisions** are binding specifically concerning interpretation of evidence rules.

❖ **Vol. 10 file No- 51706-** It violates the internationally accepted principle of Evaluation and Testing of Evidence Reliability that a **piece of evidence should be examined and evaluated in its entirety** and **not by taking only the part of the evidence** that supports the prosecution.(by citing source of others country evidence law)

❖ **Vol 12 file numb. 14981-** It based its judgment on the assessment of witness and expert evidence based on the principles of evidence law in other countries. It concludes that **expert evidence is not a conclusive evidence.**

Evidence law in civil and criminal cases.

1. Parties

- ❖ **The civil case** is one instituted by **individual** for the purpose of securing redress for a wrong, which has been committed against him, and if he is successful he will be **awarded money or other personal relief**.
- ❖ While, a **criminal prosecution** is instituted by **the government** for the purpose of securing **obedience to its laws** by the punishment or correction of the lawbreaker.
- ❖ Therefore, the existence of difference regarding the **strictness's of the evidentiary rule** applicable on those two cases seems proper.

Differences:

1. State of fair trial

- ❖ **In criminal cases**, the law of evidence has protection to the accused in respect to **his right to a fair trial** by excluding certain relevant evidences
- ❖ The court may also exercise **its discretionary power** to support the accused's right to a fair trial by excluding **potentially relevant evidences**.

Example- defendant's **bad character or his previous convictions** will not be admitted at trial, (see art 138 of cr.p.c)

❖ **While in civil proceedings** evidence that is **relevant and probative of a fact**, which needs to be proved to the court, will generally **be admissible**.

❖ There are **no mandatory rules** requiring the exclusion of evidence **in civil cases**.

❖ **Therefore, we can say that the fair trial provision is not as important in civil case as there is a greater inequality in resources between the parties in contrast with criminal proceedings in which the power full government in one side and the weaker accused on the other side are there.**

2. Effect of the judgment

- ❖ **Losing civil case** may result in the claimant or the defendant suffering serious damage to his **financial resources or property**, he will not loss **his liberty, life or suffer** the same social stigma as a person who has been convicted of criminal offence.
- ❖ This is the reason why there is **huge difference** regarding the **standard of persuasion** required in civil and criminal cases.

3. Standard of proof

- ❖ The rules relating to the **standard of proof** determines how much proof is required for a party **to persuade the court.**
- ❖ The **appropriate standard of proof** that will have to be satisfied in a criminal case is heavier than in a civil case.
- ❖ **In criminal proceeding**, the public prosecutor in order to win the case, he is required to prove, **beyond reasonable doubt.** While **in civil case** the standard is **preponderance of evidence or probabilities.**

4. Burden of proof

- ❖ The general rule in criminal cases is that the **prosecution bears the burden of proving the defendant's guilt** and the substantive law defines **what the prosecution must prove in order to convict** the defendant. see Art 136 of cr.p.c)
- ❖ Everyone charged with criminal offence shall be presumed innocent until **proven guilty according to law**. It also reflects an aspect of procedural fairness in that the prosecution has considerably **more resources at its disposal** than the defendants and therefore it should bear **the burden of proving the accused guilt**.
- ❖ **Exception to corruption procl. No-881/2007 Art 3 (Vol 24 file Numb.162738)-**
intent to obtain unlawful profit-shift burden of proof to defendant

- ❖ The well established **general rule** about the incidence of the **legal burden of proof in civil proceedings** is that '**he who asserts must prove**'.
- ❖ To put simply, the legal burden of proving a fact in issue **in a civil trial** is on the party that asserts that fact. Therefore, in civil cases, **the burden of proof first lies in the plaintiff.**
- ❖ However, this burden of proof **will shift to the defendant** if the **defendant admits the allegations** and come up with positive defense like “**force majeure** ”. In such case, the burden of proof lies on the defendant (see Art 258 of civ.P.C)

5. Evidence weight

- ❖ In civil cases, most of the claims are raised from **contractual, monetary or proprietary relationships** which could mostly be proved by **adducing documentary evidences**.
- ❖ While due to the **very nature of ways of committing a crime**, the public prosecutor mostly proves his allegation by providing an **expert and lay witnesses**.
- ❖ And the crime, which could be proved **by documentary evidences**, is less in **numbers** since they are being committed in a more sophisticated way.

6. Admissibility of admitted evidences

- ❖ **Every allegations of fact** in the **statement of claim**, **if not denied specifically** or **by necessary implication**, or stated to be **not admitted** in the statement of defense, shall be **presumed admitted** and the court shall give judgment on such admitted facts. **(see Art 83 of civ.p.c, Art 235 and 242 of civ. Pr.code).**
- ❖ **In criminal cases**, where the accused says nothing in answer to the charge or failure to cross-examine, **a plea of not guilty shall be entered.**
- ❖ The silence of the accused does not amounts to admission. **(see Art 27, and 134(1) cr.p.c].**

what if the defendant say “yes I am guilty”? 5 minute

7. judicial admissions

- ❖ Courts are **under obligation to give judgments** based on such admission without requiring the **production of additional evidences**. (see Art 242 of civ.p.c).
- ❖ **While in criminal cases**, judicial admissions are **not conclusive**. Of course, when the accused admits without reservations every ingredient in the offence charged, the court **shall enter a plea of guilty** and may **forthwith convict** the accused.
- ❖ However, the court may require the prosecution to call **such evidence for the prosecution**, as it considers necessary and may permit the accused to call evidence. (see art 134 of cr.p.c)

**Classification of
evidence**

A. Direct evidence

- ❖ Direct evidence establishes **a fact in issue** directly. **A fact in issue** is something a party alleges **to exist** and the other party **denies** the alleges.
- ❖ Direct evidence is provided by **witnesses** giving oral testimony of something **they perceived with their own senses**.
- ❖ It is also afforded by the **presentation of documents, photographs and the like**.

❖ **Cassa. Vol 12 file numb. 43453** –It held that **expert evidence** is admissible **if it is consistent with direct evidence**.

❖ Evidence is more convincing than expert evidence if it directly confirms that a person **saw and heard the outcome** of a statement.

2. Indirect evidence

- ❖ **Circumstantial evidence** is **indirect evidence** that tends to establish a conclusion **by inference**. **It doesn't directly tell you** or prove the existence or nonexistence of the alleged or disputed fact. But when you **put them together**, they form a chain **leading to a logical conclusion**.
- ❖ Since **most of offences are being executed** in a very sophisticated manner, it is difficult to **get direct evidence**. In such case, the option we have is, proving the disputed fact by **circumstantial evidence**.
- ❖ It may be **Hearsay** or **circumstantial evidence**.

Example

The defendant filed a murder charge alleging that he shot and killed him;

The fact that the suspect had a fight with the victim the day before the murder,

That he vowed to kill the victim before the day of the murder, his purchase of a gun the day before the murder, if there is evidence that the victim disappeared from the area after the death and was arrested by the police;

The court is about the concept of mind and Who killed the subject of death? enables him to reach a conclusion.

- ❖ Not only when Circumstantial witnesses are presented are they **considered alone.**
- ❖ Circumstantial evidence should **not be conflicting.** (Shall not contradict each other).
- ❖ As **it collides**, it loses trust worthiness.
- ❖ Indirect evidence can make the judge emotional and requires caution. So should be **corroborate evidence**

Issue

❖ Is there at least one direct witness or a direct witness required to prove a criminal case?

Remark

- ❖ **Cass. Vol 13 File Numb. 75922**- There is nothing in the law that says that only direct evidence that he saw or heard the crime committed must be presented to prove the commission of the crime.
- ❖ **Therefore, evidence includes evidence presented that directly or indirectly knows the fact of the dispute.(Crim. Pro. Art 137)**

Chapter 2

Proof Without Need to Establish Evidence

2.1. Introduction

- ❖ The **general rule** in both civil and criminal proceedings is that a party has **the legal and evidentiary burden of proof** on a fact in issue.
- ❖ **However**, certain allegation of fact does not **necessarily need proof**.
- ❖ There are **three exceptions** to the general rule requiring evidence to be adduced as proven without the need proof.
- ❖ These are: **admission**, **presumption** and *judicial notice*.

1. Admitted facts

Q: What is admission? Discuss in group for 5 minutes

❖ **Admission** is a **statement of fact**, which waives the production of evidence by giving way that the fact **asserted by the opponent is true.**

❖ Because, what a person **himself admits to be true** may **reasonably be presumed to be so**, and until rebutted, the fact admitted has to be taken **as evidence.**

❖ *Do you think the term “admission” is applicable in both civil and criminal cases?*

❖ • In some countries the term “**admission**” is only used in civil **cases** and “**confession**” in criminal cases. While others used the term” admission” in **both civil and criminal cases**

Position of Ethiopian laws in using the terms?

- ❖ Admission VS Confession.. **Interchangeably**
- ❖ But **Admission is broader** than confession.
- ❖ Our code(English version)- **Confession for criminal matters only.(Cri. pro. Art 35)-**
- ❖ **Admission for both civil(Civ. Pro. Code Art 242) and criminal matters(Crim. pro.code 134(1)-admits)**
- ❖ **Amharic version for criminal matters(የእምነት ቃል)፣ for civil matters መግለጫ. So our laws use interchangeably**

Why admitted facts need no proof?

- ❖ **When no dispute exists**, proof should not be required. The fact ceases to be in dispute between the parties, and as such, any evidence to prove the fact **is irrelevant**.
- ❖ **In the normal course of things**, a person **does not make himself liable** by admitting facts against himself **unless those allegations are true**.
- ❖ The courts are required to pass judgment on the the admitted facts as provided **under Art 235(2), 242 of civ.p.c** and **Art 134(2) of cr.p.c**.

- ❖ **Art 134 (1) of cr.p.c** used the term “admission “in criminal cases by saying “**when the accused admits without reservation ...**”.
- ❖ **Moreover, Art 19(5) of the FDRE** constitution used the term “admission” interchangeably with the term “confession” in criminal cases by saying “*persons arrested shall not be compelled to make confession or admission...*”

Limitations of Admissions

- ❖ In some cases, '„admitted facts need not be proved” is **less applicable**.
- ❖ This is **especially true in criminal cases** in which the court may **exclude** confessions on the grounds of **oppression, unfairness** and the like.

1. In case of self incrimination

2. In case of co-offenders:

- *Does confession made by one of the co-offenders (conspirator) admissible against the other co-offenders?*

a. The effect of confession shall be limited only on such person who made it.(cassation decision **vol 17 file numb. 96310 b/c** no due notice and non informed about their right.

- ❖ **Secondly**, the public prosecutor cannot call one of the co- offenders as a witness against the others in the same trial. **This is because**, the accused may make incriminating statements against the other to **make himself free**.
- ❖ It is also a contravention of the constitutional right of other conspirators **to be presumed as innocence before conviction**.
- ❖ • **However**, the public prosecutor can call the accused who choose to incriminate himself and others as a witness against the others by providing him separate trial.

❖ The evidence of admission in criminal matters is presented as it is. It is impossible to testify **only to the detriment of the accused.**
(see vol 6 – file numb. 96954)

Classification of Admission:

formal and **informal admissions**

- ❖ Admission may exist in the form of formal admission, and informal admissions in **both civil and criminal cases**.
- ❖ **Formal admission** is an admission of fact given by a party in:
 - ❑ statement of claim or
 - ❑ defense or
 - ❑ a counter claim or
 - ❑ open court in the first **hearing or at the trial**.
- **In criminal cases** a formal admission may be made to a **person in authority** i.e. to the **police officer** (Art 27 of cr.p.c).

- ❖ **Whereas, an informal admission** (evidentiary admission) is the second type of admission **made outside of the court(mostly)**. **B/c exceptionally it** may also be **made orally in a witness's answer to a question asked in cross-examination**.
- ❖ It also be made spontaneously by a person in response to the events given rise to the cause of action.
- ❖ • **It is a written or an oral statement** made **by a party** or by **a person connected with the party**. **And,** is most commonly made in a **letter, fax or an e mail**.
- ❖ • **Mostly,** informal admissions **are out-of-court** admissions to a person **who are not authorized to accept admissions**, for example, **to a friend**.

- ❖ **Informal admission** may be **disproved** or **explained** by other evidence at the trial and it is at the court's discretion to **decide how much weight should be attached to the statement.**
- ❖ • **However**, there is a consensus that **lesser weight shall be attached to the out of court admissions** given to an authorized person unless they are **explained** by other evidences.

Activity

- ❖ **Ato 'A'** is the owner of a factory, which produces specific goods. He sells his products, generally for cash, out of his factory.
- ❖ On an application for a bank loan, he stated that he had earned 70,000 birr from his business in the previous year. **On his tax return**, however, he indicated 15,000 net earning from his business. **Ato “A”** is now on trial for tax evasion.
- ❖ The prosecution wants to introduce the bank application. Is the bank application admissible as a **party admission**?

Types of Admissions: Judicial and Extra- Judicial

a. Judicial Admissions

- To be considered as judicial admission, it should be given **before the court**, which handled the case, and not in other courts as the case in Art 35 of cr.pc. **(save the admission given b/4 commissioner).CPC 242,235 CR.PC art 134(1)**

b. Extra- Judicial admissions (Evidentiary admission)

- Extra- Judicial admissions as opposed to judicial admission are not made in the course of court proceedings, even though in criminal matters they may have been made in the course of the criminal proceedings.**(see Art 27 of cr.P.c)**- made out of court-these are proved and disproved by any evidence.

Judicial Admissions in civil and criminal cases

1. In civil cases

- ❖• In civil cases, judicial admissions have the power to withdraw a fact **from being in issue and avoid the need for proof.**
- ❖• The effect of judicial admission is **critical in civil case.**
- ❖• The reason is, for one thing, they cannot be contradicted & the **court may not require further proof** because of **less standard of proof** required in civil cases.

Ways of making judicial admissions: in civil cases

- **A. Facts expressly admitted in parties' pleadings. (Art 83,242.Civ-p-c)**
- A party may admit a fact in **statement of claim** or **in defense** or in a **counter claim**. For example, in an action for breach of contract, the claimant may plead in his statement of case the existence of an oral contract.
- Thus, once the plaintiff admits the existence of the oral contract, he can not later produce a written contract.

B. Facts admitted by implication (Art 83,235 of civ-p-c

- ❖ Admission is not only made by the parties expressly. It may be also made by **implication.**
- ❖ • For instance, if the defendant replies in his statement of defense as “**I am not liable for the loan contract**”, it is deemed as admission.
- ❖ **Because**, the defense does not contain facts showing either **the non- existence of the contract** between them, or **the fact showing that he had borrowed the money but he returned back it to the claimant.**

- ❖ Moreover, **failure to deal specifically with an allegation of** fact in the statement of claim **by** the statement of defense **is an admission of the truth of the fact alleged.** For example, the statement of claim reads “**The defendant (the driver) was intoxicated during the car accident**”. While the defendant did **not made any comments** up on this particular allegation of the statement of claim.
- ❖ • **Thus,** the fact that “the defendant was intoxicated during the car accident” is admitted **and proof there on need not be submitted by the defendant.**

- ❖ As we understand from the words of Art 235(2) evasion should not be considered as admission regarding person under “disability”
- ❖ • Here, the question that should be answered is that why Art 235(2) make the disabled persons an exception?
- ❖ • Under the civil code minor's, insane persons, judicially interdicted persons are considered as disabled persons.
- ❖ • The law wants to protect those disabled persons due to their mental illness or immaturity. **Thus,** it is logical not to take their failure to deny specifically as admission.

Art. 235.— *Evasive denial*

- (1) Where a defendant denies an allegation of fact in the statement of claim, he shall not do so evasively, but answer the point of substance and if an allegation is made with divers circumstances, it shall not be sufficient to deny it along with those circumstances.
- (2) Every allegation of fact in the statement of claim, if not denied specifically or by necessary implication, or stated to be not admitted in the statement of defence, shall be taken to be admitted except as against a person under disability:

- ***Q. Do you think the court may use its discretion and require any fact so specifically admitted to be proved?***

- the court could, of course in the exercise of its discretion **require that this admitted fact be proved** (see Art 235(2) of civ-p-c.) But unless the court so exercises its discretion, **the defendant cannot contest said fact.**
- As provided (Art 235(2) of civ.p.c) *unless the admission is doubtful or vague*, the court should not require such specifically admitted facts to be proved. (see Art 83 of civ.p.c)

From this we can understand that even judicial admission in civil case is not conclusive

Provided that the court may in its discretion require any fact so admitted to be proved otherwise than by such admission.

C. Admission during Pre-trial hearings and at the trial

- A formal admission may be made by a party or his pleader during examination of first hearing pursuant to Art 241 and 242 of civ.p.c or at a later time when called up on by the court to indicate whether he admits a fact or not.(**Art 243 of civ.p.c**).
- **Moreover**, admission may be made by the party or his advocate during the trial. **For instance**, in application to amend in order to set up a new cause of action, in cross-examining, the other side's whiteness's evidence.
- **Admission made in pleading is conclusive and one can not withdraw later except with the permission of the court by amend his pleading.**

Question

- Is it possible to **deny** what was believed in a statement of defense on the first hearing date?

Remark

- English Version Civ.Pr.Art. 241(1) ‘the court shall ask the party or his pleader whether he **admits or denies** such allegation of factand as are not expressly or by necessary implication **admitted or denied by the party against whom they are made**’.
- Amharic version Art. 241(1) “**እንደተካደ የሚቆጠረውን** ነገር የምን ወይም ይክድ እንደሆነ ይጠይቀዋል” Vs “**እንደ ታመነ የሚቆጠረውን** ነገር ይክድ ወይም የምን እንደሆነ

Amharic provision more acceptable. So admission which is given in statement of defense is conclusive unless the court allows amendment of pleading under Art 91(4)

D. Facts admitted by a party who testifies before a commissioner

- ❖• Where a court can not exercise its power to take evidence and to examine parties it may delegate its power to a commissioner. **(a court or a person) (Art 127 ,122 of civ. P.c)**
- ❖• In accordance with **Art 124(2)** of civ-pc the commissioner **may examine the parties themselves and may receive their admissions.** the admission given in this way is considered as extra Judicial admission since it is another court other than the court having jurisdiction.
- Q. **Thus, why we categorized admissions made before a commissioner as judicial admission?**

- **Because:**

1. **the court delegates its power of examination to a commissioner.**

And,

2. **the evidence taken under it shall form part of the record of the suit. (see Art 128(2) of civ.p.c). Thus, the admission made before a commissioner is conclusive as if Judicial admission**

E. Admission by testimony of the party himself

- ❖ **in civil cases**, a party can be a competent witness in his own case. • **So**, while testifying **during his case** either in chief or cross-examination, he may admit facts.
- ❖ • **For instance**, for breach of **loan contract** of a certain amount, the defendant may make the following statement “**I am not liable to perform the contract since the claimant has agreed to me to set off his claim with the same amount for which he is liable to me extra contractually**”.
- ❖ • **In the above cases**, the defendant admits the **allegation of the plaintiff**.

- ❖• if the advocate **did well in cross-examining** the other side's party, he may **increase his probabilities of being a winner** even though **failure to cross-examine on a particular point does not** constitute admission of the truth of the opposite party since the stage of cross examination is optional.
- ❖• **However**, the cross-examined party on the other side should be able to challenge the cross-examining party.
- ❖• **Otherwise**, in civil cases, his silence may be considered as admission of the fact in question.

F. Admission by agreement of the parties

- ❖ Facts may be **admitted by a party** in a **written agreement** made before the hearing with the other party (**See 252 of civ.p.c**)
- ❖• Where a party wishes his opponent to admit a fact in issue without the need to call evidence to prove the fact at trial, a party may serve “a notice to admit facts” on the other side.
- ❖• **Where the fact is admitted**, the opposing side is relieved of calling evidence in support of that fact at the trial.

2. Judicial admission In criminal Cases

- ❖ After having read the whole charge to the accused, the court asks the accused whether he pleads guilty or not.
- ❖ • If he pleads guilty without reservation the court may enter **plea of guilty**.
- ❖ Where he admits but with reservation, the court will enter plea of not guilty. **Because, unlike civil cases, in criminal cases the court can not split the facts and frame issues with respect to those which are denied.**
- ❖ **Here,** a plea of guilty is a judicial admission of each and every elements of the offence charged.

- ❖• **But** in serious criminal case **like homicide**, **the court may require the public prosecutor to produce evidence.**
- ❖• **The reason is in one hand**, the accused might have made the admission due to various reasons like to **cover another person or to make unknown a certain fact, to be famous by his criminal act**
- ❖• **On the other hand**, the **very high standard of proof in criminal cases** still justifies further proof of a crime beyond reasonable doubt.

Extra- Judicial Admission: **Civil and criminal case**

- ❖ As said earlier in civil cases, admissions made before a commissioner is considered as judicial admissions even though it may be made outside of the court.
- ❖ • **However**, the effect of extra-Judicial admission in criminal cases is different. • This is due to the higher standard of proof required in criminal cases.
- ❖ • **In criminal cases**, an **extra-Judicial admission** may be made during police investigation (**Art 27 of cr-p-c**). The primary purpose of detaining and interrogating a suspect at a police station **is to obtain information that is relevant to the crime under investigation**

- ❖ The police may use force or coercion either **physical or psychological**.
- ❖ **Thus**, we should have a safeguard which regulates the way in which a confession is obtained and the way in which its admissibility is determined.
- ❖ **The confession** made during police investigation may be excluded on the ground of **unfairness**.
- ❖ when the suspect made his statements without **informed of his right**.

- ❖ **In criminal cases**, there is a difference on the admissibility of confessions made before the trial court, and before other courts.
- ❖ **Thus**, if the accused chooses he can at his trial contradict or explain his statement at the preliminary inquiry.
- ❖ **He could for instance**, allege that he made the statement because he was afraid of the police, because he was confused or because he was paid to do so. (**see Art 83(3) of cr.p.c**).

2. Presumption

- **Defining Presumption**(*What is presumption?*)
 - ❖ Presumption is an **inference** made about one fact from which the court is entitled to **presume certain other facts** without having those facts directly prove by evidence.
 - ❖ **Here**, the proof of one fact is taken as the proof of the other fact.
 - ❖ If the proof of A' makes the existence of fact “B” more probable it is sensible and time saving to assume the truth of fact “B” until the adversary disproves it.

Why we need presumption?

- There are **policy** considerations supporting the creation and invocation of presumption.
 1. just **to save time**. For instance, the law presumed the person who holds title deed is presumed to be the owner of immovable property.
(see art 1195 of civil code).
 2. The law may provide presumptions **for procedural convenience**.

3. The presumption may also be created under the law to protect **public policy or greater interest of government**.

❖ **For instance**, in order to protect the peace and order of **the family**, the law presumed all property acquired during marriage as a **common property of spouses**.(See art 63(1) of RFC).

❖ Similarly, the reason for the **presumption of paternity** of a child born either in wedlock or an irregular union is to enable every child to have some **body as his father**.(See Art. 126 and 130 of RFC)

Issue

*Do all presumptions depend on the proof
of the basic fact?*

Remark

- ❖ **Said earlier**, presumptions are circumstantial evidences from which if one fact (basic fact) is proved to exist, the alleged fact exists.
- ❖ **Thus**, the beneficiary of the presumption must **go half way by proving** the basic facts. **However**, there are certain presumptions not depending on proof of basic fact.

- ❖ In such case, the person who alleges such presumption is not required to prove any basic fact.
- ❖ Rather, he can be the beneficiary of such presumptions by the mere fact that they *are provided under the law due to different policy reasons*.
- ❖ • For instance, presumption of innocence is among presumptions not depending on proof of basic fact. During proceedings accused persons have the right to be presumed innocent until proved guilt according to law. See (Art 20(3) of the FDRE constitution).

Types of presumptions

1. Presumption of Fact (Permissive inferences)

- Presumption of facts are not prescribed by law.
- They are about logical inferences that can be made from a given fact.
- Presumption of facts are not mandatory, rather they are permissive in the sense that the court can take it or leave it at its discretion.

- **Example 1, from the nature of human beings one can presume that **every one loves his offspring** and do not want to see his relative or his best friend in bad situations.**
- **As a result, if a son is called to testify in favor of his father, one may presume that it is difficult to get a neutral testimony from such witness.**

2. Presumption of Law

- ❖ presumptions of law are presumption, which the law requires the court to make.
- ❖• They are mandatory in the sense that where the law requires the court to presume certain fact the court cannot refuse to presume.

Presumptions of law are of various types:

a. Irrebuttable Presumption

- ❖ Irrebuttable presumptions: **do not have the effect of shifting the burden of production to another party.**
- ❖ Once the person who has the irrebuttable presumption on his side proves the **basic fact then the other party will be won without counter proof on his side**, even if he has possible grounds of **disproving the allegations.**

- ❖ **Example**, under **Art 2024** of civil code debts due in respect of rents for house or agricultural estate shall be **deemed to have been paid** where **two years** have elapsed since they fell due.
- ❖ **No proof** shall be admitted to rebut such presumptions. **(See Art 2026 (1) civil code)**
- ❖ **See these cassation decisions regarding irrebutable presumption vol 10 file numb. 44691 and 29181, vol 12 file numb. 48857, file numb.215579(unpublished)**

➤ In this point, the cassation division of the **federal Supreme Court** passed decision that:

“If the fact in dispute is the one which is covered by the **mandatory legal presumptions** the court shall apply such presumptions irrespective of the fact that whether the given fact is denied or not by the defendant”

❖ **Irrebuttable presumption (conclusive) has the same effect as **judicial notice**.**

b. Rebuttable presumptions

- ❖ Rebuttable presumption of law unlike irrebutable presumption has the effect of shifting the burden **of proof to another party.**
- ❖ • **For instance**, in the case of presumption of **legitimacy of paternity**, a person will be presumed to be legitimate where the primary fact is proven that he was born or conceived during the period of his **parent's lawful marriage life or irregular union.** (Art 126 and 130 of RFC).

- **However**, the alleged father to rebut the presumption of legitimacy may, for example, introduce evidence proving that **he could not have sexual intercourse with the mother** during the period between the **300th and 180th day** before the birth of the child. (**See Art 168 of RFC**).

Rebuttable presumption has also two aspects

A. Rebuttable presumption by any means(ground)-

- Under Civil Code Art 1147 Change of *title*.

(1) Unless the contrary is proved, he who began to possess on behalf of another person shall be regarded as a mere holder.

(2) Proof to the contrary may be adduced by **any means.**

B. **Rebuttable presumption only by certain means(ground)**- you can only presents only grounds which are prescribed by the law only. So it is not open.

Example **Art. 1195. — 2. Title deeds.**

The issue by the administrative authorities of a title deed to the effect that a given immovable belongs to a given person shall raise a presumption that such person is the owner of such immovable.

Art. 1196. — Proof to the contrary.

The presumption laid down in Art. 1195 shall be rebutted where it is shown that:

- (a) the title deed was not issued in accordance with the law or was issued by an authority having no jurisdiction; or**
- (b) the title deed was issued on the basis of an invalid act; or**
- (c) the plaintiff acquired the ownership of the immovable after the day on which the title deed was issued.**

c. Permissive presumptions

- ❖ Like presumption of fact, they are not mandatory, and like presumption of law they are prescribed under the law.
- ❖• The provisions of the law which provides permissive presumption contain the phrase” *may presume...*” which shows its permissive nature (Art 22 of civil code)

- ❖ **For example**, a person charged of knowingly transmitting **AIDS** to woman may refuse to submit to examination.
- ❖ **However**, the court may consider the status of the accused **as HIV positive**. **But** this should be true in civil proceedings where the victim claims compensation for moral or/and material (if any) damage caused **up on her**.
- ❖ *Is permissive presumption a rebuttable presumption?*

❖ Regarding this issue, **there are different arguments:**

❖ **The first is, once** the court considers the disputed fact as established; the other party **doesn't have the right to rebut it.**

❖ While according to the **second argument**, permissive presumption has the effect of **shifting the burden of proof to another party, which enables him to rebut it.**

❖ The **third argument** is the one which consider permissive presumptions as rebuttable presumptions **depend on the discretion of the court unlike reputable presumptive.**

3. Judicial Notice

- **Q. What is judicial notice? Defining Judicial Notice:**
 - ❖ judicial notice refers to **circumstances in which the judicial system** assumes a factual proposition **to be true** even without proof of that proposition.
 - ❖ when the matter alleged is so **well known** to the court it would be a **waste of time to compel** the party to offer evidence of its truth.
 - ❖ **For example**, facts like **city of Addis Ababa** is the **capital of Ethiopia**, **criminals lead unhappy lives are** among facts of which the court will take judicial notice.

- Taking judicial notice has a great value to the courts and the litigant parties in *shortening of trials*.
- As most of the scholars agree, the matter **to take or not to take judicial notice is left to the discretion of the court**.
- **And**, if there is the **slightest doubt** as to whether the fact is true the **party must be required to submit proof to the court**.

❖ **However**, the law may require a court to take a judicial notice of a certain facts.

❖• Such judicial notice may be **mandatory**(laws published in negarit gazeta) or **discretionary**.(name of place, the seals of all ministers)

❖ **Generally** facts of which the court may take judicial notice can be classified **as:**

- **judicial notice of adjudicative facts and**
- **judicial notice of laws /legislative facts.**

1. Judicial Notice of Adjudicative Facts

a. *Facts of common knowledge*

Q. *How can we determine the communality of knowledge of a certain fact?*

- A fact of **common knowledge** is **a fact generally known to be true** by the **ordinary intelligence of the people and beyond dispute.**
- It is not something one knows because of his *academic background*. A fact of common knowledge, as you may understand refers to **knowledge that is commonly shared by all people.**

- **b. Verifiable facts**

Q. What are verifiable facts?

- ❖• *As said earlier*, veritable facts are not so notorious or part of common knowledge, but are facts that can indisputably be ascertained by reference to: authoritative means and those matters of public knowledge.
- ❖• These facts are mostly related to **science, history, art, geographical facts and political subdivision** of a state which can be ascertained by referring to maps or geography text.

- ❖ **For example,** the fact that whether an epilepsy may suddenly make a person unconscious or not, can be ascertained from text of medicine or by consulting a physician, if necessary.
- ❖ **Furthermore,** if the date in which the **Ethio-Eritrea war** had commenced is in dispute it can be ascertained by **historical records**.
- ❖ **But,** the point that **should be underscored here is** that the reference themselves should be **undisputed authorities** and the fact must be found to be **unchallenged**.

Issue

How can we determine whether the text is authoritative or not? what if for instance texts reflect the personal opinion or the political stand of the historians ?

Remark

- ❖ The court can **use a reference** which is acceptable by the **majority and which is up to date.**
- ❖ **However,** it is better that the party to submit proof to the court if there is **the slightest doubt** as to the truth of the fact.
- ❖ **Because** the criteria of **“*indisputability*”** is also there regarding verifiable facts.

2. Judicial Notice of Law.

❖ *What is judicial notice of law?*

❖ Judicial notice of law is the process by which the courts determine the **applicable law in a case**. Because, the **issue** that arise between parties may not only be issues of fact but **also issues of law**. [see Art 240 of civ. p.c]

Q. Which laws are subject to judicial notice of law?

- ❖ **As you know**, the term “*law*” covers a wide field, which includes law of the state venue, laws of other sister state, foreign laws, international laws, customary laws, administration regulations and directives and the like.
- ❖ **But here**, the question is which kind of laws is subject of judicial notice and by which courts?

- ❖ Proclamation no 3/1995, which establish the federal Negarit gazeta under art 2(3) provides: *All federal or regional legislative, executive and judiciary organ shall take judicial notice of laws published in federal negarit gazeta.*
- ❖ The word “*shall*” refers that judicial notice of laws is **mandatory**.
- ❖ **Thus, for courts to take judicial notice:** the law should be published in *negarit gazet* and such *negarit gazeta* should be the **federal negarit gazeta**.

- **Accordingly**, the next question is whether the following laws are eligible for judicial notice or not.

1. **Federal laws**: are those laws, which are enacted by the **federal law making organs**. **For instance**:

- ❖ ✓ Proclamations enacted by **the HPR**;
- ❖ ✓ administrative regulations and directive enacted by **the executive departments of federal government**;
- ❖ Laws enacted as per art 55(2) of FDRE constitution: **labour code, commercial code and criminal codes**(see Art 55(3),(4),and(5) of the FDRE constitution)
- ❖ As the HPR can enact civil laws if it deems necessary to establish and sustain one economic community. (See art 55(6) of the constitution), **those laws enacted with this rational**.

2. **Are federal treaties federal laws?** **yes.** whether courts are required to take judicial notice of treaties which are ratified but are not yet published in federal *Negarit Gazeta*?

3. **Are Administrative regulations and directives laws?** **Yes,** **regulations** are published in negarit gazeta. **But** What about **directives** made by executive departments? – **they are not published in the federal *Negarit Gazeta*!**

4. Are the **decisions of the cassation** division of the federal Supreme Court laws? **Yes!**

- But they aren't published in the federal *Negarit Gazeta*, thus **whether** courts are bound to take judicial notice of such decisions or not? But **Procl. No 1234/2013 Art 10(2)-binding starting from date of judgment** not publication.

5. State laws: what are state laws?

State laws are those laws, which are enacted by state councils in accordance with **art 52(2) (b) (f)**, and **art 55(5)** of the constitution.

❖ whether federal organs are required to take judicial notice of laws published in” *state Negarit Gazetas*? **It should be seen in light of the federal court establishment proc.**

Example procl. 1234/2013 kwt 6(1)(b) says **Substantive Laws to be Applied by Federal Courts-when the case regional case...so they are required to use state laws in cassation court when the case is regional matters.**

- What about other sister states, for instance in the case of internal conflict of laws? **Working language of courts + proc no 3/1995 gives a hint!**

Chapter 3



The diagram consists of two 3D rectangular boxes. The left box is green and contains the text 'Chapter 3'. The right box is purple and contains the text 'Relevance and Admissibility of Evidences'. A curved green arrow points from the top of the green box to the top of the purple box. A curved purple arrow points from the bottom of the purple box back to the bottom of the green box, forming a circular flow.

**Relevance and
Admissibility of
Evidences**

3.1. Facts in issue

- ❖ **Evidence is all about proof of facts.** Because, **unlike laws**, the law of evidence does not recognize things in the abstract, including laws.
- ❖ **Rather, it reduce down in to pieces** of facts so as to make it ready for proof. And it is possible to break down the provisions of the substantive law in to a set of propositions **called elements**.

- **What is a fact?**

- ❖ **Fact means** any thing or relations of things capable of **being perceived. Thus, every thing is a fact.**

- ❖ A fact may be ***internal (psychological facts) or physical (external facts).***

A. **Internal fact:** **bad faith, reputation, negligence, intention**, good faith etc. How can we prove? From conduct or word.

B. **External fact:** some thing: **seen or heard, arrangement of things**, the sense of a word use and the like.

❖ **Facts in issue:** the fact, which is **disputed between the parties** and to be resolved by the **help of evidence**.

❖ Q: How can we **determine fact in issue**? From the cases. See: art. 137& 146 of cr.p.c and art 263, 270 , 138 of civ.p.c.

❖ **In civil case**, fact in issue is determined in the **process of framing of issues** at the first hearing. (see Art 246 of civ.p.c)

3.2. Relevant facts

- ❖ **Evidence must be relevant.** But what does it mean? **(what is relevancy?)**
- ❖ And how **can we determine whether a certain evidence is relevant or not** ? Is it necessary that the evidence be conclusive of the case?(**no**)
- ❖ **Relevant fact means** any fact which **directly or inferentially** leads to a conclusions to **proof or disproof of a fact in issue.**
- ❖ Thus, relevant evidence means evidence having any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence.

❖ Basically, **relevant evidence** has two components: **materiality and probative value**.

A. **Materiality**: refers the relational aspect of relevancy. In other word, **direct or indirect logical relationship** needs to be established between the evidence and the fact to be proved.

B. **probative value**:

- ❖ This requires relevant fact to have **the capacity to prove**. Evidence to be relevant, it must have a sufficient degree of probative force.
- ❖ The evidence shall be sufficient to carry the proponent's burden of producing evidence.
- ❖ The judge shall reach the degree of confidence required by the law that the proposition is true.

Facts Relevant to Facts in Issue

- ❖ Codes nowhere specify what categories of **facts are relevant**.
- ❖ Accordingly, how can we distinguish the relevant fact from the irrelevant one?
- ❖ **In nut shell**, the determination of relevancy **is based on logic and common sense**.
- ❖ For instance, **if A is accused of the murder of B**, what facts may be considered as relevant facts?
 - I. Whatever was **said or done by A or by B**;
 - II. Whatever was **said or done by the bystanders** at the beating or so shortly before or after.

Relevancy of Circumstantial Evidence

- ❖ **Circumstantial evidence** is evidence that proves a certain **fact indirectly**.
- ❖ This evidence is depends on the **surrounding circumstances**.
- ❖ Those circumstances are facts, which should be proved by, evidence and which enables us to **make inferences** about the existence and non-existence of **the alleged or disputed fact**

Relevancy of Judicial decision

- ❖ The relevancy of **court judgment** depends on **the nature of the case**.
- ❖ Judgments of civil court are **not relevant and binding evidence on criminal courts.(in terms of taking them as obligation)**
- ❖ This is due to the reason that the standard of proof required for each case, criminal or civil is different.
- ❖ In criminal courts, the standard of proof is the formula of **beyond reasonable doubt** while in civil cases decision is based on **preponderance of evidence**.

- **However**, the relevancy of **criminal court judgment** depends on **Joined suits and non-joined suits**.

A. Joined Suits:

- ❖ Where the accused is convicted, this criminal **conviction** will have a direct **relevancy to determine the civil liability** of the accused.
- ❖ However, where the accused is **acquitted**, the question of compensation shall not be adjudicated by the then criminal court.
- ❖ Rather, the **court shall inform** the injured party that he may file a **claim against the accused in civil court having jurisdiction** (see Art 158 of cr.p.c).

B. Non-Joined suits:

- ❖ The result in criminal court may be either **acquittal or conviction**. If the result in the criminal court **was acquittal** Art 2149 of civil code specifically provides that the criminal court judgment **shall not have abiding effect** up on the civil court.
- ❖ When the result in the criminal **court is conviction**, there is no provision which **explicitly states as to whether a conviction is or is not binding on civil court.**

- ❖ Any decision made by a court in a criminal case must be based on **relevant evidence**. Cass. **vol 17 file numb. 89676**)
- ❖ **Judgments in criminal cases** are valid for civil matters and should be properly analyzed. **(cass. Vol 9 file numb. 37184)**

Relevant but Inadmissible Facts

- ❖ There is the **principle of law of evidence** that evidence **that is not relevant is not admissible.**
- ❖ **Evidence is inadmissible** if rejected for some reason **other than relevancy.**
- ❖ Thus, admissibility is **abroad concept** under which rules for exclusion of evidence irrespective of its relevancy.
- ❖ For example, relevant evidence may be excluded if it is **unfairly prejudicial, confusing, or cumulative.**

❖ **Further more**, variety of social policies operates to exclude relevant evidence like in the case of evidence protected by **private privilege** or **public interest immunity**.

❖ **In nut shell**, inadmissible evidence may not be received before a court, **no matter what is relevance might be**.

❖ When does Evidences may be Rejected by the Court?

❖ An evidence may be rejected or not received by court **for two reasons:**

I. **Firstly**, if it is not relevant and

II. **Secondly**, if there is a legal prohibition behind it.

- So, to be admissible, evidence has to be **relevant**, without any exclusionary rule preventing admissibility.

✓ **All admissible evidence are relevant but all relevant evidence are not admissible.**

Reasons that prevent Admissibility.

- **1. Public policy.**

- ❖ Though, the evidence **is relevant**, it may be prohibited from being produced as evidence before the court of law.
- ❖ One of those situations is the case of **public policy**.
- ❖ There are three relevant evidence which may but be proved in the name of public policy.

- **These are:**

I. Evidence as to affairs of state:

II. Information for the detection of crime(the name of the informant+ the ways of: gathering information and detecting crime) and

III. Disclosure judicial(the principle of independence of judiciary, art 77 FDRE Constitution)

I. Evidence as to affairs of state:

- ❖ No one shall be permitted to produce any **unpublished official records relating to affairs of state**, Or, to give any evidence derived there from except with the **permission of the minister** of the department concerned.
- ❖ Here, the fact that whether the document in question is **public or private is immaterial**. Rather, the question should be, whether such **documents can be produced with out injury to public interest or not**.
- ❖ This includes, **government secrets or public security, military force, and other internal security matters**.

2. Privilege

- ❖ Certain relevant evidences are not produced in court of law to protect (1) certain **social interest**, which prevails over the **individual interest**. For instance, **spousal privilege**.
- ❖ Similarly, there are privileges provides to protect (2) professional secrecy like in the cases of **client- Advocate**, **patient -physician**, and **priest- son relations**.

3. Parole evidence or extrinsic evidence in relation to document

- ❖ It limits proof of the fact to the **contents of the writing**, and prohibits consideration of any evidence which contradicts, alter, vary, change, and modify any of the terms or provisions of the written agreement.
- ❖ **Art 2006(2)** of the civil code provides for the parole evidence rule for contracts.

Chapter 4- Oral Evidence



Definition

- ❖ The **Blacks law dictionary**, defines oral evidence: **Verbal evidence which is given by word of mouth.**
- ❖ It is the oral testimony given **by witnesses in court.**
- ❖ Oral evidence is ordinary kind of evidence given **by witness by word of mouth.**
- ❖ it is statement made by a competent witness, **under oath or affirmation**, usually related to legal proceeding.

Who gives the Oral Evidence?

- ❖ A witness gives the **oral evidence**. Witness, in general, is one who being present, **personally sees or perceives** a thing; to testify before a court.
- ❖ A witness who has seen first hand is known as **an eye- witness**.
- ❖ As a witness, **an expert witness** testifies not only what he has seen, heard, or otherwise observed personally but he may also offer an **opinion applying his expert knowledge** to facts he has not personally observed.
- ❖ Oral evidence, therefore, includes **the statement of witness before the court**.

Oral Evidence: Importance

- ❖ In order to establish **the true fact through the accurate evaluation** of relevant and reliable evidence and assist in the achievement of rectitude or **correctness of decision making**.
- ❖ In case of **absence of documentary evidence**, especially **in criminal cases** that most of time it is hard to get documentary evidence, the possible option to prove the alleged fact is by producing oral evidence.

Competence of witnesses.

- ❖ **What do you think must a person fulfill to be a witness?**
- ❖ A competent witness is one who is **fit and commonly** gives his testimony before courts or a judicial proceeding under **oath or affirmation**.
- ❖ A competent witness is one who is able to testify or one whom nothing prevents from testifying unless there are some conditions which bar him from doing so.

Types of Competency of Witnesses

- **A. General Competency**

- ❖ It is about telling to the court **what one has heard, seen, smelt, touched, etc.** It is widely accepted that **every body is presumed to be competent.**
- ❖ That is, with the exception, perhaps, of certain witnesses, general competency is presumed. Thus, to be included as witness in the general competency a person must possess the organic and moral capacities.
- ❖ This is to mean that the test to competency relates to **the ability to understand questions and give rational answers.**

- **B. Special Competency**

- ❖ Special competency refers to a **witness's ability to testify to opinions or conclusions he has arrived at by evaluating facts** he has observed, facts presented to him by counsel or a combination of both types of facts.
- ❖ That is, **special competency** refers to the **ability to analyze** facts about which one testifies. For example, **if you go to a hospital you don't tell your illness to the doctor, but you tell the facts about your illness, then, he analyzes the facts and tells you what you are suffering from.**

- ❖ Unlike general competency of witnesses, special competency is not presumed.
- ❖ Special competency of witnesses is subdivided in to two: (1) layman's opinion, and (2) expert opinion given as testimonies.

Grounds of incompetence

- ❖ The **competency of ordinary witnesses** has its own exceptions.
- ❖ These exceptions are the **incompetence of the ordinary witnesses** due to lack of **organic and moral capacities** of presumed witnesses.
- ❖ Thus, the above quotation may enable us to say that the competency of ordinary witness is the general rule while their incompetence is the exception.

a. Mental incapacity

- ❖ **The incompetence of mentally** incapacitated persons was a ground for raising objections in both the *common law and the Ethiopian legal system*.
- ❖ It comprises **children, insane, and intoxicated persons**, whose conditions may be long lasting or intermittent in nature.
- ❖ Here, we can understand that having intellectual capacity of observation, recollection, narration or communication of what has been observed and recollected and understanding the duty of telling the truth are the main elements to be considered in the process of determining the competency or incompetence of a required witness.
- ❖ To tell the truth in the court proceedings, he may, if otherwise incompetent, testify as a witness.

- ❖ A child or a person with mental defects are generally competent (1) **if they understand the questions** put to them and (2) **rationally answer them.**
- ❖ such a witness must not only be possessed of sufficient intelligence to justify reception of the evidence but also (3) **he must understand the duty to speak the truth.**

b. Physical incapacity

- ❖ This covers those persons, who have visual, hearing, and speaking deficiencies. Such persons can, in principle, perceive the occurrence or non-occurrence of certain events.
- ❖ However, defects such as blindness, deaf or dumb may impair the power of observation to make a given witness incompetent to testify.
- ❖ Nonetheless, according to the general rule, physical incapacity is no bar to a witness's competency as long as he can understand the questions put to him and give rational answers to those questions.

❖ If a person **cannot speak, see and hear**, he may still testify if questions can be put to him in some accurate fashion and he can reply by signs or writing which **can be accurately interpreted by some one sworn to do so accurately.**

❖ **Hence, in Ethiopia**, even though **there is no law**, which governs such issue, practically these types of persons **are not incompetent to stand as** witnesses merely because they are **blind, deaf and dumb** if they are able to observe, **recollect and communicate.**

c. Legal interdiction (Conviction of a crime)

- ❖ In present Ethiopia, this **is no longer a bar** to competency of a witness.
- ❖ This can be inferred from the substantive laws such as the **FDRE Constitution and the procedural laws**, i.e., Art 142 of the Criminal Procedure Code, and Art 268 of the Civil Procedure Code, and etc

d. Interest in the outcome of the case as ground of incompetence

- ❖ This includes –**parties to the case, consanguinal and affinal relatives**, other emotional grounds and so on.
- ❖ In early times both criminal charges and civil suits, persons were disqualified as they were considered incompetent.
- ❖ **There is no such restriction in the present times.**
- ❖ The witness is presumed to be competent if he meets the requirements.



Examination of witness.

- ❖ Oral evidence is adduced in court by way of **giving answers** to questions put to **the witness**.
- ❖ There are three forms of questions, namely; **examination in chief**, **cross-examination**, and **re-examination**.
- ❖ It is the **principle of evidence** law that **the party who bears the burden of proof** has right **to begin**. Thus, **as a rule** the **public prosecutor/plaintiff** begin as the case may be then.
- ❖ The witness testifies by giving answer to examination- chief followed by cross-examination by the opposing party and re examination by the calling party.

a. Examination-in-chief

- ❖ **Examination-in-chief** is the processes where by a party who has called a witness to give evidence on his behalf elicits from that witness evidence relevant to the issues and favorable to the examiner's case.
- ❖ A witness is examined-in-chief when the party calling him questions him in court for the first time.
- ❖ examination-in-chief is a question put by the calling party to the witness so that the latter will tell the story about the fact he is asked. Art.137 of cr P c and Art.263 of civ.P c.
- ❖ The question put in examination-in-chief shall only relate to facts, which are relevant to the issue to be decided and to such facts of which the witness has **direct or indirect** knowledge.

❖ **Leading question is prohibited** in examination-in-chief.

❖ **Leading questions-that** is, a question that is phrased in such away that the desired answer is contained or implied in the question it self.(Art. 263(2) civ.p. and Art.137 (2) of cri.pro.c.)-**yes or no answers.**

❖ **Both code provides** No leading question shall be put to a witness without the permission the court. **Exception** in case of **hostile witness**

B. Cross examination

- ❖ **Cross-examination** follows **immediately** the examination-in chief, unless the courts for some reason post pones it.
- ❖ In asking such questions, the examiner tries **to weaken the testimony** of a witness given through examination-in-chief.
- ❖ It is part of the **constitutional mandate** that the witness against him must confront an accused, and testimony is not allowed to remain as evidence if the accused has not had the opportunity to fully cross examine the witness giving the testimony.
- ❖ **It is right provided under our constitution.(Art 20(4))**

- ❖ As provided by civil procedure code article 263(3), a question in **cross-examination** shall tend to show to the court what is **erroneous, doubtful the or untrue** in the answer given in examination-in-chief.
- ❖ Leading question is allowed.

How can we ask leading question?

- ❖ The **character of the witness** (whether he has previously given a false testimony by falsely accusing someone or a liar and a traitor in social life whom society does not trust),
- ❖ His **attitude towards him** (disgust) ,
- ❖ His **closeness or affection for the person** he has presented as a witness,
- ❖ The testimony of the witness is **contradictory**, and so on.

c. Re-examination

- ❖ Once a witness has been cross-examined; the party who called him is entitled try to repair any damage done to his evidence in-chief by asking further question on the matters which arose during cross-examination.
- ❖ Re-examination logically results from the **interaction between examination-in-chief and cross-examination.**

- ❖ If testimony, which is giving in answer to examination-in chief, **is discredited by cross-examination**, or **shown to be erroneous, doubtful or untrue** the party who has called the witness could re-examine the witness in the way **to cure** what is **damaged during cross-examination**.
(art. Cr.p.c 139 and civ. Pr.code art 263(4))
- ❖ The questions that may be raised **shall be limited** to the main points raised in the cross-examination.



*What
is
Hearsay?*



❖ **Hearsay** is legal term that describes **statements made out side of court.**

However, all statement made out of court are not hearsay.

❖ In ordinary circumstance, hearsay may have various meanings, but the definition of hearsay under this topic is standardized in context of evidence rule and principles.

❖ This is a **type of evidence given by a witness based on the information he has attained from the statements made by others.**

Admissibility of hearsay evidence?

Dear students, is hearsay evidence admissible in Ethiopian as a rule?

For many reasons hearsay is in principle inadmissible.

1. **Lack of cross- examination**

2. **Absence of oath**

3. **Testimonial infirmities** (wrongly perceived the events in question)

Exception to hearsay evidence

- There are certain exceptions to the hearsay rule, which makes the hearsay evidence admissible.
1. **Dying Declaration (Rule 29(a) Draft Evidence rule)**- These are declarations made by a person who knows that his death is imminent, and a person cannot be found at the time the testimony is required. A person who is going to die does not have the motive for which he has to lie

2. Statements made in the ordinary course of Business

- ❖ The idea behind this exception is that if the statement is made in the current **habit of business**, it is more likely to be trust worthy than otherwise.
- ❖ Rule 29(b) requires that the person who made statement in the ordinary courses of business should fulfill certain formalities in his courses of recording; in particular it must consist:

3. Declarations against interest rule 29(c) of DER

- ❖ There is an assertion that **a person is not likely to make statements against his interest** lightly or with causal regard for truth.
- ❖ This contributes to the trustworthiness of such statements and is the reason for this exception to the hearsay rule.

4. Statements of opinion as to the existence of a public or general right or custom.(rule 29(d))

- ❖ When it gives the opinion of any such person, as to the existence of any public right or custom or matter of public or general interest of the existence of which, if it existed, he would have been likely to be aware, provided it was made before any controversy as to such right custom or matter has arisen.

Chapter 5

Real
Evidence



- This is the physical evidence that plays a direct part in the incident in question.
- Consists of production of **any object** used in committing a crime, e.g. **gun**, **knife**, **pen**.
- **Is one mechanism of proof like that of oral evidence**
- is a type of evidence for which the court can personally inspect and make inferences and conclusions on the existence or non existence -existence of fact
- comprises of documents and physical objects in various forms
- is divided in to two-: **demonstrative and documentary** evidence
- both evidences to be relevant must satisfy the test of **authentication** and **corroboration**

1 Demonstrative Evidence

- ❖ It is any evidence introduced in a trial in the form of a physical object, intended to prove a fact in issue
- ❖ can conceivably include all or part of any object
- ❖ demonstrate **the existence or non existence** of a fact to the court.

Example in a murder case it can include;-

- ❖ DNA left by the attacker on victim's body,
- ❖ the body itself,
- ❖ the **weapon used**,
- ❖ pieces of carpet spattered with blood,
- ❖ or casts of footprints or tire prints found at the scene of the crime.

❖ It is evidence in the form of a **representation of an object.**

Examples include photos, x-rays, videotapes, movies, sound recordings, diagrams, maps, drawings, graphs, animations,

❖ **When complex, can be clarified by expert witness**

- **General Rules**

- ❖ **There must be some other piece of evidences**: a fact, an object, or testimony that needs to be illustrated or demonstrated
- ❖ Demonstrative evidence is intended to be an **adjunct to testimony**
- ❖ THE SECOND is the foundation requirement which is “laying the foundation”
- ❖ Certain preliminary steps must be followed such as authentication and accuracy

- **Authentication;-**

- ❖ Demonstrative evidence should convey what it is meant to convey.

- ❖ What it conveys must not alter, distort, or change the appearance or condition of something in any significant way

- **Representational accuracy—**

- ❖ the demonstrative evidence should fairly depict the scale, dimensions, and contours of the underlying evidence.

- ❖ A photograph or chart with some small section of it enlarged to focus in on is probably inadmissible

Identification

- ❖ The demonstrative evidence must be an exact match to the underlying evidence or the testimony illustrated.
- ❖ **demonstrative evidence** must pass the “**three hurdles**” of admissibility: **relevancy; materiality; and competency**
- ❖ demonstrative evidence must pass an additional balancing test for relevancy__ a weighing of what is **probative/ prejudicial**.
- ❖ This rule necessary favors the defendant, in rooted in the principle of fundamental fairness, and protects them from unwarranted inferences about **bad character or habit**.

2 Documentary Evidence

- ❖ DER defines it as;- **any** matter expressed or described upon any substance by means of letters figures, marks, or by more than one of those means, intended to be used, or which may be used, for the **purpose of recording that matter.**
- ❖ all documents product for the inspection of the court
- ❖ It is a type of **written proof that is offered at a trial to establish the existence or nonexistence of a fact that is in dispute.**
- ❖ Letters, **contract**, **deeds**, **license**, **certificate**, **ticket**, or other writing are documentary evidence

The difference between documentary and physical evidence

documentary Evidence	Physical Evidence
✓ usually the document is submitted for examination of the content of the document	✓ if the document is submitted for other purposes than examining the content of the letter, it could be physical evidence.
✓ is any evidence introduce at a trial in the form of hard or soft(electronic) documents	
✓ include any media by which information can be preserved, photographs, tape recording, film, and printed emails are all forms of documentary evidence. ✓	
✓ is subject to specific forms of authentication, usually through the testimony of an eyewitness to the execution of the document	
✓ is also subject to the best evidence rule, which requires that the original document unless there is a good reason not to do so	
✓ authentication- is done to ascertain who the author of the document and its genuineness ✓ Unless a documented is authenticated it may not be admitted as proof.	

3 Modes of Authentication

A. Admission of authorship by the writer- articles 2007 and 2008 of the civil code on proof in relation to contracts.

B. Proof of signature or handwriting

- ❖ article 1727 (2) of the civil code) require a document to be attested by witnesses whose signature will be included in the document
- ❖ the testimony of these witness is sufficient to prove

C. Comparison of signature /writing with others admitted or proved

- ❖ The court will compare two writings/signatures of the same person and may reach to the conclusion
- ❖ **Authentications by lay witness-** who are well acquainted with the writing of a person
- ❖ **Authentication by expert witnesses**

4 Best Evidence Rule

- Authentication + **Best Evidence** (the contents of a document can only be proved by adducing the original document itself)

Best Evidence rule

- ❖ Contend that secondary evidence, such as a **copy or facsimile**, will be not admissible if an original document is available
- ❖ Exception -; If the original **document is unavailable for reasons** other than serious misconduct of the proponent, secondary sources of evidence (such as oral testimony) can be used in place of the original
- ❖ In Ethiopia DER 53-; contents of a document may be proved either **by primary evidence** (this is the best evidence) or by way of **exception by secondary evidence**.

CHAPTER SIX: BURDEN AND STANDARD OF PROOF

1 Meaning and concept of Burden of Proof

- **Burden of Proof**

- ❖ Refers the obligation to prove allegations, which are **presented, in a legal action**
- ❖ Or refers to an obligation in a particular context to defend a position against a prima facie other position.
- ❖ **Facts in issue-** burden **of production** (burden of going forward with Evidence)- **burden of persuasion** (Discharging or preventing the discharge of these burdens is the goal of introducing evidence)

Burden of production VS. Burden of Persuasion

Burden of production	Burden of persuasion
- Refers burden of going forward with Evidence (evidential burden) - A party who has <u>a claim</u> or an allegation bears the burden of producing evidence - is the obligation of a party to introduce evidence sufficient to avoid a ruling against him on the issue	- comes when the plaintiff shows a prima-facie evidence - Refers the obligation <u>to persuade the court to the standard required by the nature of the case</u> using the evidence produced by either party. - is determined by rules of substantive laws - is simply adducing <u>enough evidence</u>
- determines whether or not the person who shoulders the burden of production will lose the case - passing the Judge” as any failure to satisfy the evidential burden means that the issue will never reach the Jury <u>if there is no an evidence on an issue</u>, the case will be decided in favor of the other party	- Refers <u>preponderance of evidence</u> (civil) and <u>beyond reasonable doubt</u> (criminal cases) - The party can win the case when only he proves persuasively the existence or non-existence, or occurrence or non-occurrence of the fact in issue
Has nothing to do with <u>weighing evidence</u>.	producing evidence be it circumstantial or prima-facie evidence or any other evidence is not an end by itself unless the party persuades the court as to the fact in issue
the burden of production may shift to the other party if the party makes a prima-facie case on the issue	<u>can't shift at any stage</u>

Up on whom does burden of proof lies?

- ❖ On a party who **allege the existence of a fact**
- ❖ On the **Plaintiff in civil** and on the **public prosecutor in criminal cases**
- ❖ The burden of production may shift from one party to the other during the **course of the trial.**
- ❖ The same party may bear both evidential burden and legal burden at the same time. i.e. where the party produce sufficient evidence to make a case he/she shall again establish a fact so as to persuade the tier of fact.

Burden of proof under the Evidence Law of Ethiopia

- **No clear cut distinction** between burden of production and persuasion.

A. Burden of proof in civil actions.

- ❖ A party who alleged the existence of a certain fact has to prove it.
- ❖ Usually burden of proof lies on the plaintiff
- ❖ Counter-claim- the burden of proof lies on the defendant.

B. Burden of proof in criminal cases

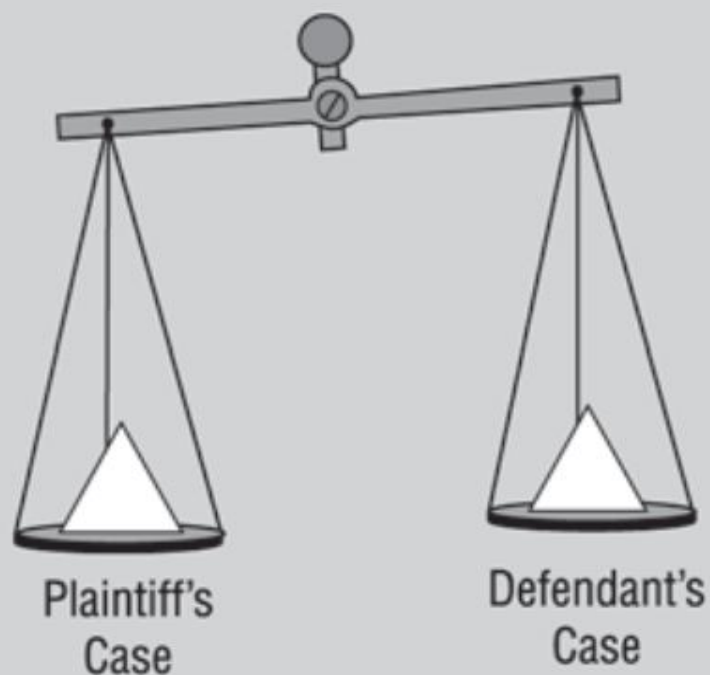
- ❖ Burden of proof lies on **the public prosecutor** –see art. 136(2)
- ❖ Article **20(3) of the FDRE constitution** - presumption of innocence
- ❖ Burden of production lies on the public prosecutor- **if no case acquittal of the accused person Art. 141.**
- ❖ If the Public prosecutor makes a case then the accused **must rebut** the evidence produced against him Art. 142

Standard of proof

- It is the level of **proof** required in a legal action to discharge the burden of proof.

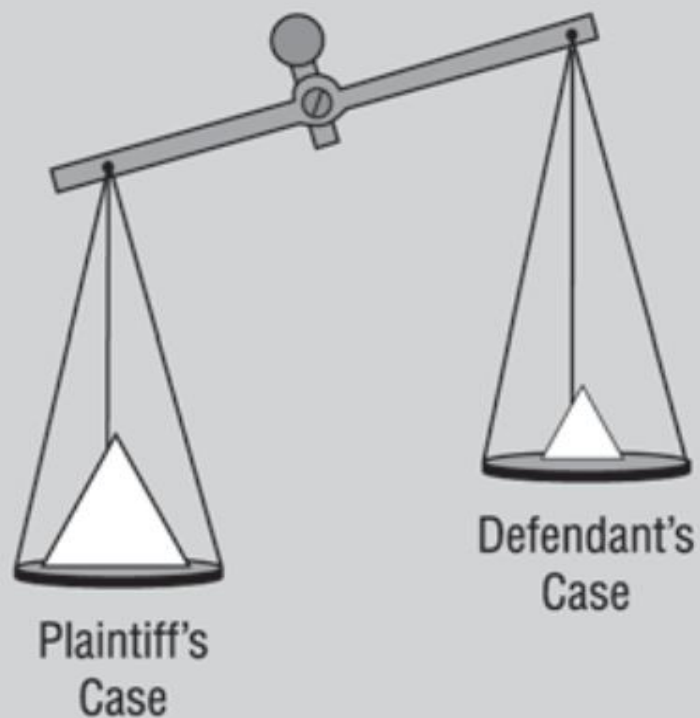
PLAINTIFF'S BURDEN OF PROOF

IN MOST CIVIL CASES



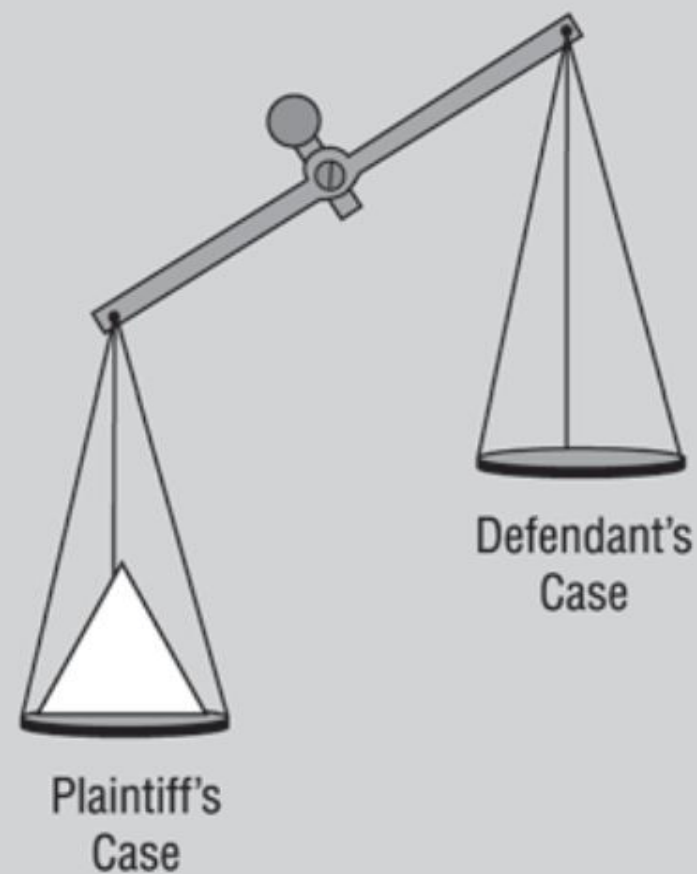
Preponderance of Evidence

IN SOME CIVIL CASES



Clear and Convincing Evidence

IN CRIMINAL CASES



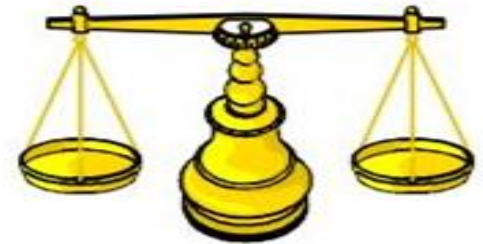
Beyond a Reasonable Doubt

Levels of Proof in the Legal System

Preponderance of
Evidence (51%)



Clear and Convincing
Evidence (75%)



Beyond a Reasonable
Doubt (95%)



Preponderance of Evidence–

Is also called as a balance of probabilities

lowest level of proof,

50+1

used mainly in civil trials

is met if the proposition is more likely to be true than not true

he plaintiff must prove each element of the claim, or cause of action, in order to recover.

No such specific rule in Ethiopia

Clear and convincing evidence

- ❖ Is employed by US civil procedure
- ❖ The party must convince that **it is substantially more likely than not** that the thing is in fact true
- ❖ Is in **the middle of Preponderance** and **Beyond Reasonable Doubt**

Beyond a reasonable doubt

- ❖ Is the highest level of proof,
- ❖ used mainly in criminal trials
- ❖ Lies on the government
- ❖ Proof- there is no "reasonable doubt" in the mind of a reasonable person
- ❖ Beyond- to the exclusion of reasonable doubts

❖ Rationales-

- The existence of presumption of innocence –art. 20 (3)
- The unbalanced position of the parties
- The grave nature of criminal punishment

❖ Giti mirkaneessaa kun akka gita mirkaneessa shakkii dhama qabeessaa **olii cimaa**, ykn akka haala fakkaachuu danda'uu **salphaa** osoo hin taane, **jiddu galeessa irratti kan argamu** dha.

❖ Kana irraa ka'uun barreessitoonni gita mirkaneessaa kana gita **ragaa ifaa fi amansiisaa** ta'e sirna kooman loo keessatti beekamu wajjiin walfakkeessan ni jiru.

❖ **Draft Crim. Provides beyond reasonable doubt and cassation decision vol 8 file numb. 37256 also takes beyond reasonable doubt as standard of prove for criminal matters.**

Art. 296.- Prosecutor's burden and standard of proof.

(1) The public prosecutor shall prove the material and moral ingredients constituting the crime, and other facts in issue and relevant facts beyond a reasonable doubt.

ከዚህም በተጨማሪ የወንጀል ክስ የማስረጃ ምዘና መርህ ከምክንያታዊ ጥርጣሬ የፀዳ /Beyond reasonable doubt/ የሚል ሲሆን በዚህ የማስረጃ አመዛዘን መርህ መሠረት በወንጀል ጥፋተኛ ለማሰኘት ጠንካራና የማያሻማ ማስረጃ የሚፈለግ ሲሆን የአሠሪና ሠራተኛ አዋጅን መሠረት የሚያደርግ ክስ በባሕሪይው ከዲሲፕሊን እርምጃ ጋር እጅጉን



Thank you!!



Join. Elias K. Law Room
(Telegram channel)

<https://t.me/eluLaw>

